



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, Senior Planner
Subject: PLTA-25-8 – Amending UDC 6.5.4 Sign Allowances and 6.5.7 Prohibited Signs
Date: May 27, 2025

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/27/2025
- Public Services Committee 6/2/2025
- Second reading 6/9/2025
- Public Services Committee 6/16/2025
- Third and final reading 6/23/2025

Planning Commission Recommendation:

The Planning Commission heard this item at their May 19, 2025, meeting and unanimously voted to recommend the Governing Body approve the proposed text amendment with the following change:

- 6.5.7.j to read as follows:
"Signs that are obscene, ~~defamatory, misleading~~ or do not concern lawful activity.
(black text is the original proposed language, not existing UDC language)

Planning Commissions proposed change is reflected in the attached ordinance.

The Planning Commission Staff report is attached and has not been changed (except that areas changed by the Planning Commission have been noted in green to attempt to reduce confusion when comparing the Planning Commission Staff Report to the Ordinance).

Attachments:

1. Ordinance
2. Redlined Ordinance
3. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING PORTIONS OF THE UNIFIED DEVELOPMENT CODE REGARDING SIGNAGE, TO INCREASE ALLOWANCES FOR WINDOW SIGNS AND FURTHER CLARIFYING PROHIBITED SIGNS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment to the Unified Development Code (UDC) that is the subject of this ordinance meets the review criteria specified in Section 2.4.1.d of the UDC.

Section 2. That on May 19, 2025, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Table 6-16 of Section 6.5.4, Sign Allowances, and Section 6.5.7, Prohibited Signs, of Chapter 6.5, Signs, of Article 6, Design Regulations, of the Unified Development Code of the City of Cheyenne, Wyoming, are hereby amended as set out in this section (the amendment in context of the entirety of Section 6.5.4 Sign Allowances is attached as Exhibit A):

TABLE 6-16: NON-RESIDENTIAL DISTRICT SIGN ALLOWANCES	
<i>Temporary Signs</i>	▪ Up to 2 per lot. ▪ No single sign shall be more than 32 square feet. ▪ Signs may be placed up to 45 days prior to and 10 days following the event or distinct time period addressed by the sign.
<i>Building Signs</i>	▪ Wall Signs up to 20% of the wall area, but no more than 400 square feet total. The NB, MUR , and MUB districts shall count only 10% of the street facing walls up to the height of 20' in calculating the Wall Sign allowance. Only one Wall Sign per each 50' of building frontage is permitted in the CBD. ▪ 1 Projecting Sign per street frontage, projecting no more than 5' from the surface, and no greater than 32' in area. Projecting Signs shall have a clearance of at least 10', and shall project no higher than the highest point of the building.
<i>Ground Signs</i>	▪ 1 Freestanding or Low-profile Sign per street frontage or building complex. The height and area of Freestanding Ground Signs shall be based on Table 6-17. The area shall be limited to 8 square feet for each 25' of lot frontage up to a maximum of 80 square feet. ▪ Incidental signs may be provided at 12 square feet per acre, and no more than 6 square feet per sign.

<i>Pedestrian Signs</i>	▪ Awning Signs / Canopy Signs provided the awning or canopy provides at least 8' clearance and the sign is limited to 3 square feet per linear foot of awning or canopy. ▪ Hanging Signs shall be allowed one per every 50 linear feet of building frontage, or one for every building entrance, whichever is greater. Hanging Signs shall not exceed 12 square feet in area. ▪ Window Signs shall be allowed in any street-level window. Window signs shall not exceed more than 25% of the window area between 2' and 8' above grade, unless the window sign utilizes a material that allows light to penetrate into the building, in which case the window sign may cover 100% of the window area.
<i>Neighborhood / District Identification Signs</i>	▪ Up to 2 per each street intersection with an arterial street and no more than 32 square feet for each sign. In industrial business parks in the MUE, BP, and HI zone districts, the allowance for neighborhood identification signs may be up to 200 square feet per sign. The area allowance for each arterial intersection may be allocated to more frequent signs at smaller intersections within the neighborhood. ▪ No sign or structure supporting the sign shall exceed a height of 6'. In industrial business parks in the MUE, BP, and HI zone districts, sign structures may be up to 20' high, and neighborhood identification signs may be placed on prominent structures having a non-sign primary function (such as a water tower, cell tower, electrical facility, or similar).

6.5.7 Prohibited Signs

The following specific application of sign types are prohibited in all zoning districts, regardless of whether they meet the sign allowances of this Section:

- a. Signs that have been abandoned for sixty (60) days or longer;
- b. Signs imitating or resembling government signs for traffic direction or any other public safety symbol, unless approved by the City for the purpose of traffic direction or public safety in accordance with Chapter 10.20 of the Municipal Code of the City of Cheyenne;
- c. Signs placed on vehicles or trailers for the primary purpose of displaying the sign(s), when such vehicle or trailer is parked and visible from the public right-of-way and is not used in the normal day-to-day operations of the owner or a business;
- d. Signs placed in or encroaching upon a public right-of-way, except:
 1. Awnings, projecting canopies, and marquees which comply with the provisions of these regulations and are at least 8' above the sidewalk;
 2. Bus stop benches and shelters, displaying signs on the backs of the benches, approved by the City through a request for proposal (RFP) process and a contract with a provider of the benches;
 3. Portable signs which comply with these regulations; and

4. Signs located in the right-of-way directly between the property line of the owner of the sign and the curb or edge of the roadway, with the review and approval of the City Engineer through applicable agreements or permits regarding use of the right-of-way. Any approved sign comes with the understanding that roadway or utility improvements may affect the sign and if the sign is required to be maintained, moved, removed or replaced it may be required to be done at the expense of the owner of the sign. If approved, such signs must meet code requirements for a sign placed 0' to 5' from the right-of-way.
- e. Building signs that extend vertically above the highest portion of the roof line or parapet, whichever is higher.
- f. Portable signs, except that one sign per building entrance may be allowed as a permitted Pedestrian Sign in any Mixed-Use, Commercial or Industrial zone district, subject to the following:
 1. The sign consists of non-illuminated chalkboards or similar devices mounted on tripods, easels or pedestals;
 2. The sign shall not exceed 12 square feet and shall not exceed 5' height;
 3. The sign shall be located no more than 25' from the principal entrance to the building and removed from the premises during non-business hours; and
 4. If located in the right-of-way it shall be located in a manner that allows at least 6' clear area for pedestrian flow and meet all sight line triangle requirements.
- g. Signs on corner lots within the sight line triangle, except:
 1. Signs which do not exceed 2.5' above street grade, and
 2. Freestanding signs which have at least 12' of clearance above street grade and which do not have a support pole larger than 12" in diameter.
- h. Animated signs, except in the CB, BP, LI, or HI districts.
- i. Off-premises signs located on private property, unless approved as a billboard or as part of a temporary use permit (for off-premises temporary signage).
- j. Signs that are obscene or do not concern lawful activity.

Section 4. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 5. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

6.5.4 Sign Allowances

The following sign allowances apply to zoning districts or groups of zoning districts as the basic standard. Other restrictions in this Section, or other regulations may operate to further reduce the basic sign allowances within each zoning district.

- a. **Rural and Agriculture and Residential Zoning Districts.** The allowances in Table 6-15 apply to the AG, AR, RR, LR, MR, NR-1, NR-2, NR-3, and HR districts.

TABLE 6-15: RESIDENTIAL DISTRICT SIGN ALLOWANCES

Temporary Signs	- Up to 2 per lot - No single sign shall be more than 6 square feet - Lots larger than 1 acre, or with more than 150' of street frontage may have up to 4 signs, and may exceed the area requirements provided the total area of all temporary signs does not exceed 24 square feet, and no more than 16 square feet per single sign. - Signs may be placed up to 10 days prior to and following the event or distinct time period addressed by the sign.
Neighborhood / District Identification Signs	- Up to 2 per each street intersection with an arterial street and no more than 32 square feet for each sign. The area allowance for each arterial intersection may be allocated to more frequent signs at smaller intersections within the neighborhood. - No sign or structure supporting the sign shall exceed a height of 6'.
Other Signs	1 Building Sign, Ground Sign, or Pedestrian Sign is allowed for each street frontage where any non-residential use is approved as a permitted, administrative, or conditional use within the zoning district. These other signs shall be limited as follows: - No more than 8 square feet and a height of 8' for residential dwelling building types. - No more than 48 square feet and a height of 8' for non-residential or mixed-use building types. - Any ground sign shall be setback at least 5' from the property line. - No more than 3 square feet and a height of 8' for home occupations.

- b. **Mixed-Use, Commercial and Industrial Zoning Districts.** The allowances in Table 6-16 apply to the NB, CB, CBD, MUR, MUB, MUE, LI, HI, AD, P, SS, BP, and PUD districts.

TABLE 6-16: NON-RESIDENTIAL DISTRICT SIGN ALLOWANCES

Temporary Signs	- Up to 2 per lot - No single sign shall be more than 32 square feet. - Signs may be placed up to 45 days prior to and 10 days following the event or distinct time period addressed by the sign.
Building Signs	- Wall Signs up to 20% of the wall area, but no more than 400 square feet total. The NB, MUR, and MUB districts shall count only 10% of the street facing walls up to the height of 20' in calculating the Wall Sign allowance. Only one Wall Sign per each 50' of building frontage is permitted in the CBD. 1 Projecting Sign per street frontage, projecting no more than 5' from the surface, and no greater than 32' in area. Projecting Signs shall have a clearance of at least 10', and shall project no higher than the highest point of the building.
Ground Signs	1 Freestanding or Low-profile Sign per street frontage or building complex. The height and area of Freestanding Ground Signs shall be based on Table 6-17. The area shall be limited to 8 square feet for each 25' of lot frontage up to a maximum of 80 square feet. - Incidental signs may be provided at 12 square feet per acre, and no more than 6 square feet per sign.
Pedestrian Signs	- Awning Signs / Canopy Signs provided the awning or canopy provides at least 8' clearance and the sign is limited to 3 square feet per linear foot of awning or canopy. - Hanging Signs shall be allowed one per every 50 linear feet of building frontage, or one for every building entrance, whichever is greater. Hanging Signs shall not exceed 12 square feet in area. - Window Signs shall be allowed in any street-level window. Window signs shall not exceed more than 25% of the window area between 2' and 8' above grade, unless the window sign utilizes a material that allows light to penetrate into the building, in which case the window sign may cover 100% of the window area.
Neighborhood / District Identification Signs	- Up to 2 per each street intersection with an arterial street and no more than 32 square feet for each sign. In industrial business parks in the MUE, BP, and HI zone districts, the allowance for neighborhood identification signs may be up to 200 square feet per sign. The area allowance for each arterial intersection may be allocated to more frequent signs at smaller intersections within the neighborhood. - No sign or structure supporting the sign shall exceed a height of 6'. In industrial business parks in the MUE, BP, and HI zone districts, sign structures may be up to 20' high, and neighborhood identification signs may be placed on prominent structures having a non-sign primary function (such as a water tower, cell tower, electrical facility, or similar).

1. *Ground Sign Limits.* Any allowed ground sign in a non-residential zoning district shall be limited according to the following table:

Distance From Right-of-way	Freestanding Height	Freestanding Area	Low-profile Height	Low-profile Area
0' – 5'***	10'	20 s.f.	8'	40 s.f.
5' – 10'***	12'	30 s.f.	8'	60 s.f.
10' – 15'***	14'	40 s.f.	10'	70 s.f.
15' – 20'	16'	50 s.f.	12'	80 s.f.
20' – 25'	18'	60 s.f.	12'	90 s.f. *
25'+	20'	70 s.f.	12'	100 s.f. *

* In the CBD District, low profile ground signs shall not exceed 80 square feet, and shall not exceed 20' in height or the height of the building associated with the sign, whichever is less.

** In the CB, CBD, and AD Districts, freestanding ground signs shall be set back at least 15' from the street right-of-way.

*** Freestanding signs are not allowed in the NB, MUB, or MUR Districts.

2. *Additional Regulations and Distinctions.* The following additional regulations and distinctions apply to signs in the non-residential zoning districts:

- (a) Drive-through signs, where permitted are limited by drive through design and location standards and in no case may exceed more than 32 square feet. Any directional signs associated with the drive through shall be limited by the Incidental / Directional Sign allowances for the site.
- (b) Ground Signs shall be setback at least 15' from any side lot line.
- (c) Not more than one externally illuminated sign shall be allowed per street frontage.
- (d) Illuminated signs and awnings are allowed only with reverse copy with no white or ivory background.
- (e) Sign cabinets shall be finished. Aluminum sign cabinets shall be painted or anodized and shall not be mill finished aluminum. Electrical conduit shall not be routed along the outside of walls to a sign, but shall be routed through the wall at the sign location.
- (f) Indirect lighting shall be shielded so as not to create glare to vehicle or pedestrian traffic.
- (g) Ground Signs shall not exceed 8' in height and 48 square feet in area in the MUR district, and Wall Signs shall not exceed 48 square feet in area in the MUR district.

3. *Incentives / Bonus.*

- (a) *Materials.* A 10% bonus in the maximum permitted sign allowance for Freestanding Signs may be provided if a Freestanding Sign is

designed to integrate with the building structure. The sign is considered integrated if the same or similar building materials and colors are used. If there is disagreement whether a sign is integrated, the Director shall make a final decision. The bonus can be applied to both height and area.

- (b) *Landscape.* A 10% bonus in the maximum permitted sign allowance for Freestanding Signs may be provided if a Freestanding Sign is located within a landscaped area. The bonus may be granted if a minimum of 4 square feet of landscaping is provided for every 1 square foot of sign area. If the Freestanding Sign is integrated into a raised planter box, the landscaped area may be reduced to one square foot of landscaping for every one square foot of sign area. The bonus can be applied to both height and area.
- (c) *Building Location.* A 10% bonus in the maximum permitted sign allowance for Building Signs and Pedestrian Signs may be provided in the MUR, MUB, NB, and CB districts where the building is located within 10' of the street right-of-way, and where no Freestanding Ground Signs are constructed.
- (d) *Master Sign.* Any sign approved as a Master Sign through the Master Sign Program (as outlined in Section 6.5.5.e) may have an increase in area and height as follows:
 - i. *Area.* To qualify for an area bonus, a minimum of 4 tenants must contribute to the Master Sign. The area on a Master Sign may be increased by 50% for every sign removed or by 8 square feet per tenant space on the sign –

whichever is greater. However, in no case shall the sign exceed 400 square feet in total area.

- ii. Height. To qualify for a height bonus, a minimum of 4 tenants must contribute to the Master Sign. The maximum height of a qualifying Low-Profile Master Sign is 75% of the maximum height of a Freestanding Sign placed at the same location as the Master Sign. The maximum height of a qualifying Freestanding Master Sign is 125% of the Freestanding Sign's height allowance.

- (e) Near-interstate signs. Any parcel in a non-residential zone district and within 1000 ft of the I-25 or I-80 rights of way may have one extra Freestanding Sign which may have a bonus in area and height with the following regulations:

- i. 30' minimum clearance between the ground and the base of the sign
- ii. 60' maximum height
- iii. 200 square feet maximum area
- iv. Be located on the half of the parcel closest to the interstate right-of-way
- v. EMC size maximum may be increased from 25% of the allowed sign area to 40% of the allowed sign area
- vi. If the parcel abuts the interstate right-of-way, this 'extra' sign replaces the allowance for a ground sign for the interstate right-of-way street frontage
- vii. If the sign is within 350 linear feet of the property line of a duplex, single-family dwelling, or townhouse located in a residential zone district, the following modifications to requirements apply:
 - 20' minimum clearance
 - 40' maximum height
 - 100 square feet maximum area

c. **Electronic Message Centers.**

1. Electronic Message Centers shall be permitted accessory uses to any use classified as a Civic Use or as a Service – Entertainment Use in any zone district, subject to the following:
 - (a) Electronic Message Center allowed at up to 40% of the total allowed sign area.
 - (b) Properties utilizing this allowance may only place Electronic Message Centers on low-profile ground signs.
2. Electronic Message Centers shall be permitted accessory uses to any use with a Drive-Through (Drive-in or Drive-up Facility) in any zone district, subject to the following:
 - (a) Electronic Message Center allowed as a Drive-Through sign at up to 100% of the total allowed sign area.
3. Electronic Message Centers may be allowed in the CB, MUB, CBD, P, AD, SS, BP, LI, and HI Districts, subject to the following:
 - (a) Electronic Message Center allowed on a Low-profile sign at up to 40% of the total allowed sign area.
 - (b) Electronic Message Center allowed on a Freestanding sign at up to 25% of the total allowed sign area.
 - (c) Electronic Message Center allowed as a Wall, Canopy, or Window sign at up to 32 square feet per elevation.
4. All Electronic Message Centers shall comply with the following.
 - (a) No animation, video, or other non-static display shall be allowed.
 - (b) No blinking, intermittent, flashing or moving lights shall be allowed.
 - (c) The message shall change no more than once every 8 seconds.
 - (d) Transitions between messages shall be accomplished in 2 seconds or less by employing immediate, dissolve, or fade method.
 - (e) Shall not increase the ambient lighting level by more than 0.3 foot candles when measured via a foot candle meter at any property line. A light-sensing device that adjusts the brightness as ambient light conditions change is required.
 - (f) Shall not be constructed within 50 linear feet of the property line of a Detached Dwelling, Semi-attached Dwelling, or Attached Dwelling unit located in any of the following zone districts: LR, MR, HR, NR-1, NR-2, NR-3, or MUR.
 - (g) Shall be constructed such that the face of the Electronic Message Center is perpendicular to the direction of travel on the adjacent street, and is located within 150 linear feet of the property line of a Detached Dwelling, Semi-attached Dwelling, or Attached Dwelling unit located in any of the following zone districts: LR, MR, HR, NR-1, NR-2, NR-3, or MUR. (Subsection c(4)(g) does not apply to Drive-Through signs.)

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING PORTIONS OF THE UNIFIED DEVELOPMENT CODE REGARDING SIGNAGE, TO INCREASE ALLOWANCES FOR WINDOW SIGNS AND FURTHER CLARIFYING PROHIBITED SIGNS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment to the Unified Development Code (UDC) that is the subject of this ordinance meets the review criteria specified in Section 2.4.1.d of the UDC.

Section 2. That on May 19, 2025, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Table 6-16 of Section 6.5.4, Sign Allowances, and Section 6.5.7, Prohibited Signs, of Chapter 6.5, Signs, of Article 6, Design Regulations, of the Unified Development Code of the City of Cheyenne, Wyoming, are hereby amended as set out in this section (the amendment in context of the entirety of Section 6.5.4 Sign Allowances is attached as Exhibit A):

TABLE 6-16: NON-RESIDENTIAL DISTRICT SIGN ALLOWANCES	
<i>Temporary Signs</i>	▪ Up to 2 per lot. ▪ No single sign shall be more than 32 square feet. ▪ Signs may be placed up to 45 days prior to and 10 days following the event or distinct time period addressed by the sign.
<i>Building Signs</i>	▪ Wall Signs up to 20% of the wall area, but no more than 400 square feet total. The NB, MUR, and MUB districts shall count only 10% of the street facing walls up to the height of 20' in calculating the Wall Sign allowance. Only one Wall Sign per each 50' of building frontage is permitted in the CBD. ▪ 1 Projecting Sign per street frontage, projecting no more than 5' from the surface, and no greater than 32' in area. Projecting Signs shall have a clearance of at least 10', and shall project no higher than the highest point of the building.
<i>Ground Signs</i>	▪ 1 Freestanding or Low-profile Sign per street frontage or building complex. The height and area of Freestanding Ground Signs shall be based on Table 6-17. The area shall be limited to 8 square feet for each 25' of lot frontage up to a maximum of 80 square feet. ▪ Incidental signs may be provided at 12 square feet per acre, and no more than 6 square feet per sign.

<i>Pedestrian Signs</i>	▪ Awning Signs / Canopy Signs provided the awning or canopy provides at least 8' clearance and the sign is limited to 3 square feet per linear foot of awning or canopy. ▪ Hanging Signs shall be allowed one per every 50 linear feet of building frontage, or one for every building entrance, whichever is greater. Hanging Signs shall not exceed 12 square feet in area. ▪ Window Signs shall be allowed in any street-level window. Window signs shall not exceed more than 25% of the window area between 2' and 8' above grade, <u>unless the window sign utilizes a material that allows light to penetrate into the building, in which case the window sign may cover 100% of the window area.</u>
<i>Neighborhood / District Identification Signs</i>	▪ Up to 2 per each street intersection with an arterial street and no more than 32 square feet for each sign. In industrial business parks in the MUE, BP, and HI zone districts, the allowance for neighborhood identification signs may be up to 200 square feet per sign. The area allowance for each arterial intersection may be allocated to more frequent signs at smaller intersections within the neighborhood. ▪ No sign or structure supporting the sign shall exceed a height of 6'. In industrial business parks in the MUE, BP, and HI zone districts, sign structures may be up to 20' high, and neighborhood identification signs may be placed on prominent structures having a non-sign primary function (such as a water tower, cell tower, electrical facility, or similar).

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 - Awnings, projecting canopies, and marquees which comply with the provisions of these regulations and are at least 8' above the sidewalk;
 - Bus stop benches and shelters, displaying signs on the backs of the benches, approved by the City through a request for proposal (RFP) process and a contract with a provider of the benches; ~~and~~
 - Portable signs which comply with these regulations; ~~and~~

4. Signs located in the right-of-way directly between the property line of the owner of the sign and the curb or edge of the roadway, with the review and approval of the City Engineer through applicable agreements or permits regarding use of the right-of-way. Any approved sign comes with the understanding that roadway or utility improvements may affect the sign and if the sign is required to be maintained, moved, removed or replaced it may be required to be done at the expense of the owner of the sign. If approved, such signs must meet code requirements for a sign placed 0' to 5' from the right-of-way.
- e. Building signs that extend vertically above the highest portion of the roof line or parapet, whichever is ~~less~~ higher.
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 2. Freestanding signs which have at least 12' of clearance above street grade and which do not have a support pole larger than 12" in diameter. ~~;~~
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FIRST READING: _____

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PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

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TABLE 6-15: RESIDENTIAL DISTRICT SIGN ALLOWANCES

Temporary Signs	- Up to 2 per lot - No single sign shall be more than 6 square feet - Lots larger than 1 acre, or with more than 150' of street frontage may have up to 4 signs, and may exceed the area requirements provided the total area of all temporary signs does not exceed 24 square feet, and no more than 16 square feet per single sign. - Signs may be placed up to 10 days prior to and following the event or distinct time period addressed by the sign.
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- b. **Mixed-Use, Commercial and Industrial Zoning Districts.** The allowances in Table 6-16 apply to the NB, CB, CBD, MUR, MUB, MUE, LI, HI, AD, P, SS, BP, and PUD districts.

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Building Signs	- Wall Signs up to 20% of the wall area, but no more than 400 square feet total. The NB, MUR, and MUB districts shall count only 10% of the street facing walls up to the height of 20' in calculating the Wall Sign allowance. Only one Wall Sign per each 50' of building frontage is permitted in the CBD. 1 Projecting Sign per street frontage, projecting no more than 5' from the surface, and no greater than 32' in area. Projecting Signs shall have a clearance of at least 10', and shall project no higher than the highest point of the building.
Ground Signs	1 Freestanding or Low-profile Sign per street frontage or building complex. The height and area of Freestanding Ground Signs shall be based on Table 6-17. The area shall be limited to 8 square feet for each 25' of lot frontage up to a maximum of 80 square feet. - Incidental signs may be provided at 12 square feet per acre, and no more than 6 square feet per sign.
Pedestrian Signs	- Awning Signs / Canopy Signs provided the awning or canopy provides at least 8' clearance and the sign is limited to 3 square feet per linear foot of awning or canopy. - Hanging Signs shall be allowed one per every 50 linear feet of building frontage, or one for every building entrance, whichever is greater. Hanging Signs shall not exceed 12 square feet in area. - Window Signs shall be allowed in any street-level window. Window signs shall not exceed more than 25% of the window area between 2' and 8' above grade, unless the window sign utilizes a material that allows light to penetrate into the building, in which case the window sign may cover 100% of the window area.
Neighborhood / District Identification Signs	- Up to 2 per each street intersection with an arterial street and no more than 32 square feet for each sign. In industrial business parks in the MUE, BP, and HI zone districts, the allowance for neighborhood identification signs may be up to 200 square feet per sign. The area allowance for each arterial intersection may be allocated to more frequent signs at smaller intersections within the neighborhood. - No sign or structure supporting the sign shall exceed a height of 6'. In industrial business parks in the MUE, BP, and HI zone districts, sign structures may be up to 20' high, and neighborhood identification signs may be placed on prominent structures having a non-sign primary function (such as a water tower, cell tower, electrical facility, or similar).

1. *Ground Sign Limits.* Any allowed ground sign in a non-residential zoning district shall be limited according to the following table:

Distance From Right-of-way	Freestanding Height	Freestanding Area	Low-profile Height	Low-profile Area
0' – 5'***	10'	20 s.f.	8'	40 s.f.
5' – 10'***	12'	30 s.f.	8'	60 s.f.
10' – 15'***	14'	40 s.f.	10'	70 s.f.
15' – 20'	16'	50 s.f.	12'	80 s.f.
20' – 25'	18'	60 s.f.	12'	90 s.f. *
25'+	20'	70 s.f.	12'	100 s.f. *

* In the CBD District, low profile ground signs shall not exceed 80 square feet, and shall not exceed 20' in height or the height of the building associated with the sign, whichever is less.

** In the CB, CBD, and AD Districts, freestanding ground signs shall be set back at least 15' from the street right-of-way.

*** Freestanding signs are not allowed in the NB, MUB, or MUR Districts.

2. *Additional Regulations and Distinctions.* The following additional regulations and distinctions apply to signs in the non-residential zoning districts:

- (a) Drive-through signs, where permitted are limited by drive through design and location standards and in no case may exceed more than 32 square feet. Any directional signs associated with the drive through shall be limited by the Incidental / Directional Sign allowances for the site.
- (b) Ground Signs shall be setback at least 15' from any side lot line.
- (c) Not more than one externally illuminated sign shall be allowed per street frontage.
- (d) Illuminated signs and awnings are allowed only with reverse copy with no white or ivory background.
- (e) Sign cabinets shall be finished. Aluminum sign cabinets shall be painted or anodized and shall not be mill finished aluminum. Electrical conduit shall not be routed along the outside of walls to a sign, but shall be routed through the wall at the sign location.
- (f) Indirect lighting shall be shielded so as not to create glare to vehicle or pedestrian traffic.
- (g) Ground Signs shall not exceed 8' in height and 48 square feet in area in the MUR district, and Wall Signs shall not exceed 48 square feet in area in the MUR district.

3. *Incentives / Bonus.*

- (a) *Materials.* A 10% bonus in the maximum permitted sign allowance for Freestanding Signs may be provided if a Freestanding Sign is

designed to integrate with the building structure. The sign is considered integrated if the same or similar building materials and colors are used. If there is disagreement whether a sign is integrated, the Director shall make a final decision. The bonus can be applied to both height and area.

- (b) *Landscape.* A 10% bonus in the maximum permitted sign allowance for Freestanding Signs may be provided if a Freestanding Sign is located within a landscaped area. The bonus may be granted if a minimum of 4 square feet of landscaping is provided for every 1 square foot of sign area. If the Freestanding Sign is integrated into a raised planter box, the landscaped area may be reduced to one square foot of landscaping for every one square foot of sign area. The bonus can be applied to both height and area.
- (c) *Building Location.* A 10% bonus in the maximum permitted sign allowance for Building Signs and Pedestrian Signs may be provided in the MUR, MUB, NB, and CB districts where the building is located within 10' of the street right-of-way, and where no Freestanding Ground Signs are constructed.
- (d) *Master Sign.* Any sign approved as a Master Sign through the Master Sign Program (as outlined in Section 6.5.5.e) may have an increase in area and height as follows:
 - i. *Area.* To qualify for an area bonus, a minimum of 4 tenants must contribute to the Master Sign. The area on a Master Sign may be increased by 50% for every sign removed or by 8 square feet per tenant space on the sign –

whichever is greater. However, in no case shall the sign exceed 400 square feet in total area.

- ii. Height. To qualify for a height bonus, a minimum of 4 tenants must contribute to the Master Sign. The maximum height of a qualifying Low-Profile Master Sign is 75% of the maximum height of a Freestanding Sign placed at the same location as the Master Sign. The maximum height of a qualifying Freestanding Master Sign is 125% of the Freestanding Sign's height allowance.

- (e) Near-interstate signs. Any parcel in a non-residential zone district and within 1000 ft of the I-25 or I-80 rights of way may have one extra Freestanding Sign which may have a bonus in area and height with the following regulations:

- i. 30' minimum clearance between the ground and the base of the sign
- ii. 60' maximum height
- iii. 200 square feet maximum area
- iv. Be located on the half of the parcel closest to the interstate right-of-way
- v. EMC size maximum may be increased from 25% of the allowed sign area to 40% of the allowed sign area
- vi. If the parcel abuts the interstate right-of-way, this 'extra' sign replaces the allowance for a ground sign for the interstate right-of-way street frontage
- vii. If the sign is within 350 linear feet of the property line of a duplex, single-family dwelling, or townhouse located in a residential zone district, the following modifications to requirements apply:
 - 20' minimum clearance
 - 40' maximum height
 - 100 square feet maximum area

c. **Electronic Message Centers.**

1. Electronic Message Centers shall be permitted accessory uses to any use classified as a Civic Use or as a Service – Entertainment Use in any zone district, subject to the following:
 - (a) Electronic Message Center allowed at up to 40% of the total allowed sign area.
 - (b) Properties utilizing this allowance may only place Electronic Message Centers on low-profile ground signs.
2. Electronic Message Centers shall be permitted accessory uses to any use with a Drive-Through (Drive-in or Drive-up Facility) in any zone district, subject to the following:
 - (a) Electronic Message Center allowed as a Drive-Through sign at up to 100% of the total allowed sign area.
3. Electronic Message Centers may be allowed in the CB, MUB, CBD, P, AD, SS, BP, LI, and HI Districts, subject to the following:
 - (a) Electronic Message Center allowed on a Low-profile sign at up to 40% of the total allowed sign area.
 - (b) Electronic Message Center allowed on a Freestanding sign at up to 25% of the total allowed sign area.
 - (c) Electronic Message Center allowed as a Wall, Canopy, or Window sign at up to 32 square feet per elevation.
4. All Electronic Message Centers shall comply with the following.
 - (a) No animation, video, or other non-static display shall be allowed.
 - (b) No blinking, intermittent, flashing or moving lights shall be allowed.
 - (c) The message shall change no more than once every 8 seconds.
 - (d) Transitions between messages shall be accomplished in 2 seconds or less by employing immediate, dissolve, or fade method.
 - (e) Shall not increase the ambient lighting level by more than 0.3 foot candles when measured via a foot candle meter at any property line. A light-sensing device that adjusts the brightness as ambient light conditions change is required.
 - (f) Shall not be constructed within 50 linear feet of the property line of a Detached Dwelling, Semi-attached Dwelling, or Attached Dwelling unit located in any of the following zone districts: LR, MR, HR, NR-1, NR-2, NR-3, or MUR.
 - (g) Shall be constructed such that the face of the Electronic Message Center is perpendicular to the direction of travel on the adjacent street, and is located within 150 linear feet of the property line of a Detached Dwelling, Semi-attached Dwelling, or Attached Dwelling unit located in any of the following zone districts: LR, MR, HR, NR-1, NR-2, NR-3, or MUR. (Subsection c(4)(g) does not apply to Drive-Through signs.)



A COMMUNITY OF CHOICE

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PLANNING COMMISSION

MAY 19, 2025

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code 6.5.4 Zoning Allowances and 6.5.7 Prohibited Signs to increase allowances for window signs and clarify prohibited signage

CASE NUMBER: PLTA-25-8

PREPARED BY: Seth Lloyd, AICP, Senior Planner, Planning and Development Department

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code 6.5.4 Zoning Allowances and 6.5.7 Prohibited Signs as outlined in this staff report and recommended by staff, noting the amendments meet the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

The proposed text amendments are to the sign code. During the Annual Review process, there was a public request to allow for larger window signs and to allow for off-premises signage. This item was discussed at a Council work session, and concerns were expressed about window sign size limitations, off-premises signage, and inappropriate content on signs.

Currently window signs are limited to 25% of the window area. This proposed amendment would allow window signage at 100% of the window area, as long as the sign was designed to allow light penetration.

Off-premises signage is prohibited by the current UDC, except as a temporary sign with a temporary use permit. Based on the discussion at the work session, this section of code is effectively remaining the same, although some clarification is proposed to be added.

Content regulation is a very tricky aspect of sign codes. The United States Supreme Court case *Reed v. Gilbert* (2015) established the basic test that signs could not be read to determine compliance with code requirements, with only a few exceptions. A few broad categories appear to be acceptable, such as commercial v. noncommercial signs, on-premises v. off-premises signs, and where the government has a compelling interest in limiting speech (for example, Justice Thomas, writing the opinion of the court, stated *“An ordinance narrowly tailored to the challenges of protecting the safety of pedestrians, drivers, and passengers—e.g., warning signs marking hazards on private property or signs directing traffic—might also survive strict scrutiny”*).

Content-neutral regulations are appropriate (sign elements where the sign does not have to be ‘read’ to determine compliance – such as height, area, lighting, portability, limits on placing on public property, etc.).

Certain forms of speech are generally not considered ‘protected speech’ (in any context) and may also be limited by sign code. In an attempt to address some of the concerns expressed by Council regarding sign content, a new section “j” underneath 6.5.7 has been added to specifically prohibit types of speech that are classically considered unprotected. Although such sign content may be effectively prohibited under other sections of municipal code (or state or federal regulations), the rejection of these types of speech in the zoning code would explicitly allow the zoning official to reject signs in violation, and allow another avenue of enforcement against signs in violation.

While 6.5.7 Prohibited Signs was opened for review, Staff added some clarifications to sections based on experience with the code:

- One section of Prohibited Signs is a section intended to prevent businesses from creating confusion by putting up advertisements that look exactly like traffic control devices. Imagine a realistic ‘stop’ sign in the middle of Dell Range to try and get people to visit a retail store adjacent to it! However, technically the current code as written would prohibit private developments from installing traffic control devices where they are being used properly (e.g. a ‘stop’ sign on an internal street) – a clarification to code allows the City to approve needed traffic control signage on private property.
- One section prohibits signs from encroaching in the right-of-way. However, there are places in the City where right-of-way is extra-large and it may be appropriate for a sign to be closer to the roadway than at the property line. Currently, if the right-of-way is extra-large or misrepresented by GIS, a business owner may need a survey or a partial vacation action to get the sign where they want it. This amendment proposes allowing signs in the right-of-way if the area of adjacent right-of-way is appropriate for signage (as reviewed and approved by the City Engineering department).
- A clarification to building signage to allow wall signs to be on parapets. On a flat-roofed building where a parapet is the highest point, it would be difficult to locate and enforce if the sign could not exceed the height of the flat roof behind the parapet
- Allowance of portable signs in all non-residential zones. Portable signs are currently prohibited in the CB zone – but commercial establishments in strip malls in the CB zone may want to use these signs. Portable signs in the CB zone are likely to be less obstructing than in the CBD (downtown) or other mixed-use zones.

PROPOSED AMENDMENTS:

Amend UDC Section 6.5.4.b, Table 6-16 (Non-Residential District Sign Allowances):

<i>Pedestrian Signs</i>	Window Signs shall be allowed in any street-level window. Window signs shall not exceed more than 25% of the window area between 2' and 8' above grade, <u>unless the window sign utilizes a material which allows light to penetrate into the building, in which case the window sign may cover 100% of the window area.</u>
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Amend UDC Section 6.5.7 Prohibited Signs:

6.5.7 Prohibited Signs

The following specific application of sign types are prohibited in all zoning districts, regardless of whether they meet the sign allowances of this Section:

- a. Signs that have been abandoned for sixty (60) days or longer;
- b. Signs imitating or resembling government signs for traffic direction or any other public safety symbol, unless approved by the City in accordance with Chapter 10.20 - Traffic Control Devices, City of Cheyenne Municipal Code for the purpose of traffic direction or public safety;
- c. Signs placed on vehicles or trailers for the primary purpose of displaying the sign(s), when such vehicle or trailer is parked and visible from the public right-of-way and is not used in the normal day-to-day operations of the owner or a business;
- d. Signs placed in or encroaching upon a public right-of-way, except:
 1. Awnings, projecting canopies, and marquees which comply with the provisions of these regulations and are at least 8' above the sidewalk;
 2. Bus stop benches and shelters, displaying signs on the backs of the benches, approved by the City through a request for proposal (RFP) process and a contract with a provider of the benches; and
 3. Portable signs which comply with these regulations.
 4. Signs located in the right-of-way directly between the property line of the owner of the sign and the curb or edge of roadway, with the review and approval of the City Engineer through applicable agreements or permits regarding use of the right-of-way. Any signs so approved are with the understanding that roadway or utility improvements may affect the sign and if the sign is required to be maintained, moved, removed, or replaced it may be required to be done at the expense of the owner of the sign. If approved, such signs must meet code requirements for a sign placed 0' to 5' from the right-of-way.
- e. Building signs that extend vertically above the highest portion of the roof line or parapet, whichever is less-higher.
- f. Portable signs, except that one sign per building entrance may be allowed as a permitted Pedestrian Sign in any Mixed-Use, Commercial or Industrial zone the CBD, NB, or MUB district, subject to the following:
 1. The sign consists of non-illuminated chalkboards or similar devices mounted on tripods, easels or pedestals;
 2. The sign shall not exceed 12 square feet and shall not exceed 5' height;
 3. The sign shall be located no more than 25' from the principal entrance to the building and removed from the premises during non-business hours; and
 4. If located in the right-of-way it shall be located in a manner that allows at least 6' clear area for pedestrian flow and meet all sight line triangle requirements.
- g. Signs on corner lots within the sight line triangle, except:
 1. Signs which do not exceed 2.5' above street grade, and

- 2. Freestanding signs which have at least 12' of clearance above street grade and which do not have a support pole larger than 12" in diameter;
- h. Animated signs, except in the CB, BP, LI, or HI districts.
- i. Off-premises signs located on private property, unless approved as a billboard or as part of a temporary use permit (for off-premises temporary signage).
- j. Signs which are obscene, which contain defamation, which are misleading, or which do not concern lawful activity. **Changed by Planning Commission**

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

PlanCheyenne encourages the local governments to "work with local and regional economic development, educational, and business partners to position the Cheyenne Area as a leading place to live and do business in the Northern Front Range region." (Policy 1.5.A) This amendment is based off of collaboration with business parks to increase the ability of the region to respond to incoming business opportunities.

PlanCheyenne also encourages the region to provide "quality of life amenities that are competitive with those of other communities in the Northern Front Range region" – including parks and recreation facilities (Policy 1.5.C). This amendment allows the City more flexibility in using recreational impact fees to provide the amenities and facilities needed by the community. Similarly, Policies 6.5.A encourages centrally located recreation facilities that can serve large numbers of people.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

From ARTICLE 6 – ZONING of TITLE 15 CITIES AND TOWNS:

- WYO 15-1-601(a)(i) The governing body of any city or town, by ordinance, may (i) Regulate and restrict the:
- (A) Height, number of stories and size of buildings and other structures;
 - ...
 - (E) Location and use of buildings, structures and land for trade, industry, residence or other purposes.
- WYO 15-1-601(c) Regulations may differ from one (1) district to another but shall be uniform for each class or kind of buildings within a district.
- WYO 15-1-601(d) All regulations shall be made:
- (i) In accordance with a comprehensive plan and designed to:
 - (A) Lessen congestion in the streets;
 - (B) Secure safety from fire, panic and other dangers;

- (C) Promote health and general welfare;
 - (D) Provide adequate light and air;
 - (E) Prevent the overcrowding of land;
 - (F) Avoid undue concentration of population; and
 - (G) Facilitate adequate provisions for transportation, water, sewerage, schools, parks and other public requirements.
- (ii) With reasonable consideration, among other things, of the character of the district and its peculiar suitability for particular uses;
 - (iii) With a view to conserving the value of buildings and encouraging the most appropriate use of land throughout the city or town; and
 - (iv) With consideration given to the historic integrity of certain neighborhoods or districts and a view to preserving, rehabilitating and maintaining historic properties and encouraging compatible uses within the neighborhoods or districts, but no regulation made to carry out the purposes of this paragraph is valid to the extent it constitutes an unconstitutional taking without compensation.

Assessment: Controlling signage is a legitimate governmental zoning purpose. The amendments are consistent within each district and provide for the public welfare. Adequate, but not overwhelming signage is necessary for proper transportation throughout the community.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

Adequate, but not overwhelming signage is part of the public welfare. Keeping signage within defined purposes is also for the public welfare.

CONCLUSION:

Staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code 4.2.5 Park Fees as outlined in this staff report and recommended by staff, noting the amendments meet the review criteria of UDC 2.4.1.d.
